Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Salt Lake City, Utah.

GEORGE W. ABBOTT,
Assistant Secretary of the Interior.

DECEMBER 20, 1960.

[F.R. Doc. 60-11919; Filed, Dec. 23, 1960; 8:46 a.m.]

[Public Land Order 2235]

[Anchorage 050396]

ALASKA

Partly Revoking Executive Order No. 4257 of June 27, 1925

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 4257 of June 27, 1925, which withdrew public lands in Alaska for lighthouse purposes, is hereby revoked so far as it affects the following-described lands:

Parcel 18

Halibut Cove, Kachemak Bay, Cook Inlet, Alaska, shown on U.S. Coast and Geodetic Survey Chart No. 8554, Sheet No. 17:

All of Ismailof Island (Approx. Long. 151° 14′ W., Lat. 59° 35½′ N.), except the northeast point of land containing the Halibut Cove Light and being that part lying east of the easterly boundary of U.S. Survey No. 1540.

The areas described aggregate approximately 49 acres.

Parcel 35

Puffin Island, Chiniak Bay, Alaska, shown on U.S. Coast and Geodetic Survey Chart No. 8570, Sheet No. 33. Island about 2 nautical miles 206° true from the town of Kodiak; including adjacent rocks and reefs not covered at low water. (Approx. Long. 152°26½′ W., Lat. 57°45′ N.)

The area described contains approximately 3 acres.

2. In Parcel 18, the following-described lands, totaling 61.04 acres, have been patented: U.S. Survey No. 1380; U.S. Survey No. 1540; U.S. Survey No. 1541. The following are included in Color-of-Title Claims: U.S. Survey No. 1542 (Anchorage 045501); U.S. Survey No. 1543 (Anchorage 044985; Anchorage 045638). Parcel 35 is withdrawn by Executive Order No. 8278 of October 28, 1939, as amended, for use of the Department of the Navy, for military purposes.

3. Ismailof Island is situated off-shore of Halibut Cove in Kachemak Bay, approximately 10 miles southeast of the Homer Spit.

4. Subject to any valid existing rights and the requirements of applicable law, the unreserved, unappropriated public lands are hereby opened to settlement, and to filing of applications, selections and locations as are allowable on unsurveyed lands, in accordance with the following:

a. Applications and selections under the nonmineral public land laws, may be presented to the Manager mentioned below beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) Until 10:00 a.m. on March 22, 1961, the State of Alaska shall have a preferred right of application to select the lands in accordance with and subject to the provisions of the Act of July 28, 1956 (70 Stat. 709; 48 U.S.C. 46-3b), and section 6(g) of the Alaska Statehood Act of July 7, 1958 (72 Stat. 339).

(3) All valid applications and selections under the nonmineral public land laws other than from the State of Alaska presented prior to 10:00 a.m. on January 25, 1961, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral leasing laws. They will be open to settlement under the homestead and Alaska homesite laws, and location under the United States mining laws, beginning at 10:00 a.m. on March 22, 1961.

5. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Anchorage, Alaska.

GEORGE W. ABBOTT,
Assistant Secretary of the Interior.

DECEMBER 20, 1960.

[F.R. Doc. 60-11920; Filed, Dec. 23, 1960; 8:46 a.m.]

Title 46—SHIPPING

Chapter II—Federal Maritime Board, Maritime Administration, Department of Commerce

SUBCHAPTER B—REGULATIONS AFFECTING MARITIME CARRIERS AND RELATED ACTIVITIES

[Docket No. 859; General Order 69, Amdt. 2]

PART 226—FREE TIME AND DEMURRAGE CHARGES ON IMPORT PROPERTY APPLICABLE TO ALL COMMON CARRIERS BY WATER

Interpretation and Discontinuance of Rule Making Procedure

The procedure instituted by notice of proposed rule making in the above subject matter under Docket No. 859, which appeared in the FEDERAL REGISTER issue of July 25, 1959 (24 F.R. 5973), is hereby discontinued.

Part 226 is hereby amended by adding the following new section and center heading:

INTERPRETATION

§ 226.2 Applicability of decision and order.

This part is interpreted by the Federal Maritime Board to bar common carriers by water from assessing demurrage or storage charges against import property at New York for any period during which they are unable to deliver such property because of a strike by longshoremen, regardless of whether the cargo has been made available for delivery during the entire prescribed period of free time.

By order of the Federal Maritime Board.

Dated: December 15, 1960.

(Sec. 204, 49 Stat. 1987, as amended; 46 U.S.C. 1114)

THOMAS LISI,
Secretary.

[F.R. Doc. 60-11930; Filed, Dec. 23, 1960; 8:47 a.m.]